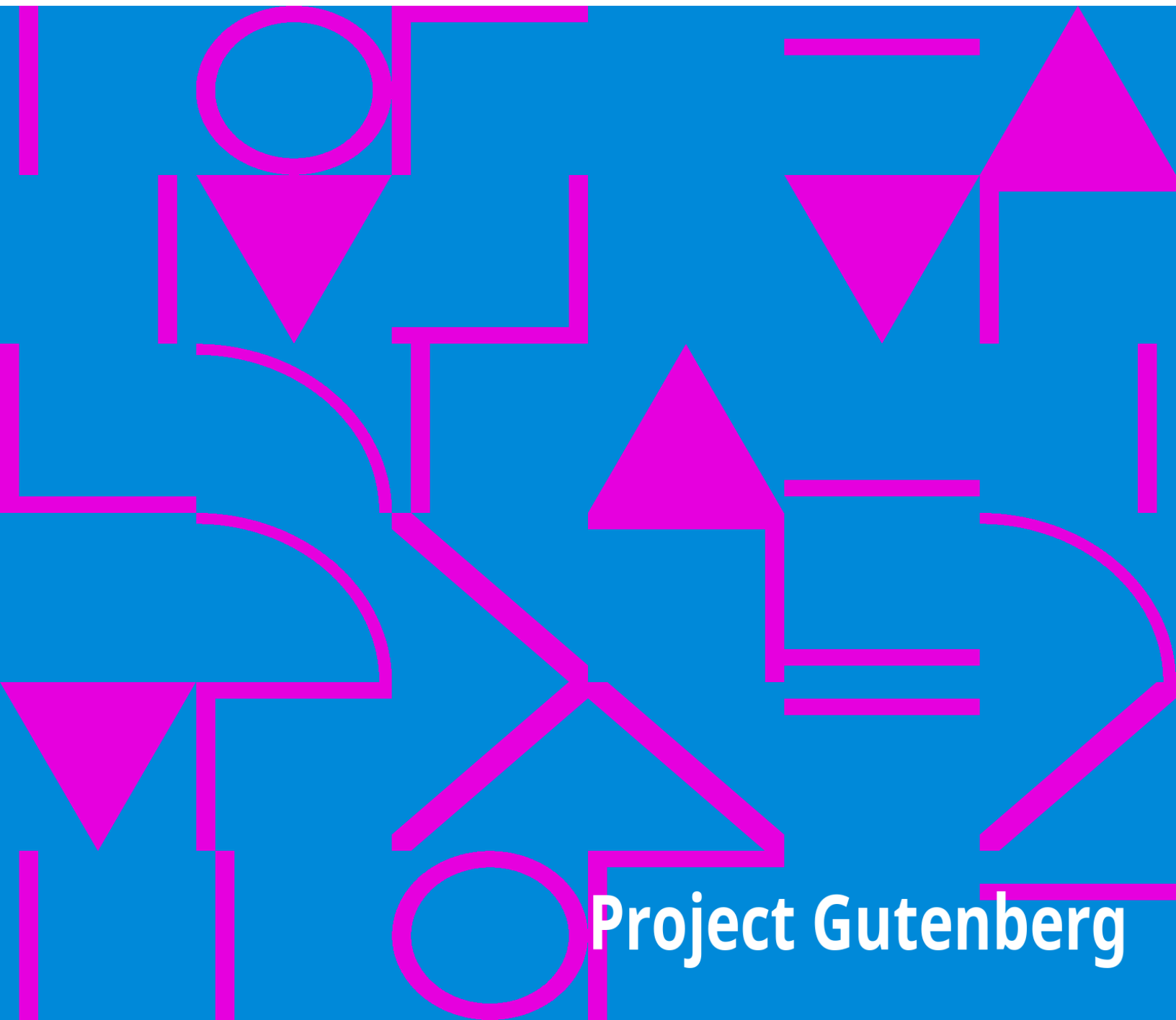


Two Days' Solitary Imprisonment

Edward Bellamy

The background of the lower half of the image is a solid blue color. Overlaid on this background is a complex, abstract pattern of magenta (bright pink) geometric shapes. These shapes include circles, triangles, squares, and various lines and arcs, some of which are nested or overlapping. The pattern is dense and covers most of the lower half of the image, except for the area where the 'Project Gutenberg' text is located.

Project Gutenberg

Two Days' Solitary Imprisonment

Edward Bellamy



Project Gutenberg

The Project Gutenberg eBook of Two Days' Solitary Imprisonment

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Two Days' Solitary Imprisonment

Author: Edward Bellamy

Release date: September 21, 2007 [eBook #22706]

Most recently updated: January 7, 2013

Language: English

Other information and formats: www.gutenberg.org/ebooks/22706

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK TWO DAYS'
SOLITARY IMPRISONMENT ***

TWO DAYS' SOLITARY IMPRISONMENT

By Edward Bellamy

1898

Mr. Joseph Kilgore was suffering from one of those spring influenzas which make a man feel as if he were his own grandfather. His nose had acquired the shape of a turnip and the complexion of a beet. All his bones ached as if he had been soundly thrashed, and his eyes were weak and watery. Your deadly disease is oftener than not a gentleman who takes your life without mauling you, but the minor diseases are mere bruisers who just go in for making one as uncomfortable and unpresentable as possible. Mr. Kilgore's influenza had been coming on for several days, and when he woke up this particular morning and heard the rain dripping on the piazza-roof just under his bedroom-window, he concluded, like a sensible man, that he would stay at home and nurse himself over the fire that day, instead of going to the office. So he turned over and snoozed for an hour or two, luxuriating in a sense of aches and pains just pronounced enough to make the warmth and softness of the bed delightful.

Toward noon, the edge of this enjoyment becoming dulled, he got up, dressed, and came downstairs to the parlor, where his brother's wife (he was a bachelor, living with a married brother) had considerably kindled up a coal-fire in the grate for his benefit.

After lying off in the rocking-chair till past dinner-time, he began to feel better and consequently restless. Concluding that he would like to read, he went rummaging about the bookcases for a likely-looking novel. At length he found in the upper shelf of a closet a book called "Rôles of a Detective," containing various thrilling accounts of crimes and the entanglement of criminals in the meshes of law and evidence.

One story in particular made a strong impression on his mind. It was a tale of circumstantial evidence, and about how it very nearly hung an innocent man for a murder which he had no thought of committing. It

struck Joseph rather forcibly that this victim of circumstantial evidence was as respectable and inoffensive a person as himself, and probably had never any more thought of being in danger from the law. Circumstances had set their trap for him while he was quite unconscious of peril, and he only awoke to find himself in the toils. And from this he went on to reflect upon the horrible but unquestionable fact that every year a certain proportion, and perhaps a very considerable proportion, of those who suffered the penalties of the law, and even the death-penalty, are innocent men,—victims of false or mistaken evidence. No man, however wise or virtuous, can be sure that he will not be taken in this fearful conscription of victims to the blind deity of justice. "None can tell," thought Joseph, with a shudder, "that the word he is saying, the road he is turning, the appointment he is making, or whatever other innocent act he is now engaged in, may not prove the last mesh in some self-woven death-net, the closing link in some damning chain of evidence whose devilish subtlety shall half convince him that he must be guilty as it wholly convinces others."

Timidity is generally associated with imaginativeness, if not its result, and Joseph, although he concealed the fact pretty well under the mask of reticence, was constitutionally very timid. He had an unprofitable habit of taking every incident of possible embarrassment or danger that occurred to his mind as the suggestion for imaginary situations of inconvenience or peril, which he would then work out, fancying how he would feel and what he would do, with the utmost elaboration, and often with really more nervous excitement than he would be likely to experience if the events supposed should really occur. So now, and all the more because he was a little out of sorts, the suggestions of this story began to take the form in his mind of an imaginary case of circumstantial evidence of which he was the victim. His fancy worked up the details of a fictitious case against himself, which he, although perfectly innocent, could meet with nothing more than his bare denial.

He imagined the first beginnings of suspicion; he saw it filming the eyes of his acquaintances, then of his friends, and at last sickly over the face even of his brother Silas. In fancy he made frantic attempts to regain the confidence of his friends, to break through the impalpable, impenetrable barrier which the first stir of suspicion had put between their minds and his. He cried, he begged, he pleaded. But in vain, all in vain. Suspicion had made his appeals and adjurations sound even to his friends as strange and

meaningless as the Babel-builders' words of a sudden became to each other. The yellow badge of suspicion once upon him, all men kept afar, as if he were a fever-ship in quarantine. No solitary imprisonment in a cell of stone could so utterly exclude him from the fellowship of men as the invisible walls of this dungeon of suspicion. And at last he saw himself giving up the hopeless struggle, yielding to his fate in dumb despair, only praying that the end might come speedily, perhaps even reduced to the abject-ness of confessing the crime he had not committed, in order that he might at least have the pity of men, since he could not regain their confidence. And so strongly had this vision taken hold on him that his breath came irregularly, and his forehead was damp as he drew his hand across it.

As has been intimated, it was Mr. Joseph Kilgore's very bad habit to waste his nervous tissue in the conscientiously minute elaboration of such painful imaginary situations as that above described, and in his present experience there was nothing particularly novel or extraordinary for him. It was the occurrence of a singular coincidence between this internal experience and a wholly independent course of actual events, which made that waking nightmare the beginning of a somewhat remarkable comedy, or, more properly, a tragedy, of errors. For, as Joseph lay back in his chair, in a state of nervous exhaustion and moral collapse, the parlor-door was thrown open, and Mrs. Silas Kilgore, his sister-in-law, burst into the room. She was quite pale, and her black eyes were fixed on Joseph's with the eager intensity, as if seeking moral support, noticeable in those who communicate startling news which they have not had time to digest.

The effect of this apparition upon Joseph in his unstrung condition may be readily imagined. He sprang up, much paler than Mrs. Kilgore, his lips apart, and his eyes staring with the premonition of something shocking. These symptoms of extraordinary excitement even before she had spoken, and this air as if he had expected a shocking revelation, recurred to her mind later, in connection with other circumstances, but just now she was too full of her intelligence to dwell on anything else.

"A man was murdered in our barn last night. They 've found the body!" she exclaimed.

As the meaning of her words broke on him, Joseph was filled with that sort of mental confusion which one experiences when the scene or circumstances of a dream recur in actual life. Was he still dreaming that

ghostly vision of suspicion and the death-trap of circumstances? Was this a mere continuation of it? No, he was awake; his sister-in-law standing there, with pallid face and staring eyes, was not an apparition. The horrid, fatal reality which he had been imagining was actually upon him.

"I did not do it!" dropped from his ashen lips.

"You do it? Are you crazy? Who said anything about your doing it?" cried the astounded woman.

The ring of genuine amazement in her voice was scarcely needed to recall Joseph to the practical bearing of his surroundings, and break the spell of superstitious dread. The sound of his own words had done it. With a powerful effort he regained something like self-control, and said, with a forced laugh:—

"What an absurd thing for me to say! I don't know what I could have been thinking of. Very odd, was it not? But, dear me! a man murdered in our barn? You don't tell me! How terrible!"

His constrained, overdone manner was not calculated to abate Mrs. Kilgore's astonishment, and she continued to stare at him with an expression in which a vague terror began to appear. There are few shorter transitions than that from panic to anger. Seeing that her astonishment at his reception of the news increased rather than diminished, he became exasperated at the intolerable position in which he was placed. His face, before so pale, flushed with anger.

"Damnation! What are you staring at me that way for?" he cried fiercely.

Mrs. Kilgore gave a little cry, half of indignation, half of fright, and went out of the room, shutting the door after her.

Joseph had ample opportunity to review the situation before he was again disturbed, which, indeed, was not till some hours later, at dusk, when Silas came home, and the tea-table was set. Silas had been promptly summoned from his shop when the discovery of the body was made, and had been busy all the afternoon with the police, the coroner, and the crowds of visitors to the scene of the tragedy.

The conversation at the tea-table ran entirely upon the various incidents of the discovery, the inquest, and the measures of the police for the apprehension of the criminal. Mrs. Kilgore was so full of questions that she scarcely gave Silas time to answer, and Joseph flattered himself that his

comparative silence was not noticeable. Nevertheless, as they rose from the table, Silas remarked:—

"You don't seem much interested in our murder, Joseph; you have n't asked the first question about it."

Mrs. Kilgore was just leaving the room, and she turned her head to see how he would answer. But he, too, turned off the matter by saying something about Maria's loquaciousness having left him no chance. After tea the little family circle was gathered in the parlor. Mrs. Kilgore was sewing; Silas read the newspaper, and Joseph sat up by the fire. From time to time, as he glanced around, he caught Mrs. Kilgore's eyes studying him very intently. Her manner indicated that her indignation at his behavior and language earlier in the afternoon had been quite neutralized by her curiosity as to its cause.

"There 's nothing in the paper to-night but the murder, and I know that already," exclaimed Silas, finally. "Maria, where's there something to read? Hullo! what's this?"

He had taken up from the table the story of circumstantial evidence which Joseph had been reading that morning.

"Why, Maria, here's that murder-book you wouldn't let me finish last summer for fear I'd murder you some night. Who on earth hunted up that book of all books, to-day of all days?"

"I did," replied Joseph, clearing his throat, in order to speak with a natural inflection.

"You did?" exclaimed Silas.

"You must have looked the house over to find it, for I hid it carefully," said Mrs. Kilgore, looking sharply at him. "What made you so anxious to get it?"

"I was not particularly anxious. I was merely looking for something to read," said Joseph, making a pretense of yawning, as if the matter was a very trivial one.

"I suppose the murder brought it to his mind," said Silas.

"Why, no!" exclaimed Mrs. Kilgore quickly. "You must have been reading it before the murder. Now that I remember, I saw it in your hands."

"Before the murder, were you, Joseph? Why, that's almost enough to make one feel superstitious," said Silas, turning around in his chair, so as to look fairly at him.

Joseph had half a mind to make a clean breast of the matter then and there, and explain to them how curiously the reading of that book had affected him. But he reflected that Silas was rather unimaginative, and would probably be more mystified than enlightened by his explanation.

"I do believe it was reading that book which made you act so queerly when I brought you in the news of the murder," pursued Mrs. Kilgore.

"How is that? How did he act queerly?" asked Silas.

"I am not aware that I acted queerly at all," said Joseph doggedly.

He knew well enough he had acted queerly, and did not mean to deny that; but, as children and confused persons often do, he answered to the underlying motive rather than the language. He only thought of denying the inference of suspicion that her words seemed to him to suggest. But to Mrs. Kilgore he very naturally seemed to be prevaricating.

"Why, Joseph!" said she, in a raised voice, and with a slight asperity; "you know how you jumped up, looking like a ghost, the moment I opened the door, and the first thing you said after I 'd told you that they 'd found a murdered man in the barn, was—Why, Joseph, what's the matter?"

But I must go back a little. When the conversation turned on the book and Joseph's connection with it, a minute or so previous, Silas had quite naturally glanced over at his brother, and, as the talk went on, his glance had become a somewhat concentrated gaze, although expressive of nothing but the curiosity and slight wonder which the circumstances suggested. It would not do to have Silas think that he avoided his eyes, and so Joseph had, as soon as he felt this gaze, turned his own face rather sharply toward it. He had meant merely to meet his brother's look in a natural and unaffected manner. But, although never more sensible of just what such a manner would be, he was utterly unable to compass it. He was perfectly aware that the expression of his eyes was much too serious and challenging,—and yet he could not, for the soul of him, modify it. Nor did he dare to withdraw his gaze after it had once met his brother's, although knowing that it was fast becoming a fierce stare, and perceiving that Silas had already noticed something peculiar in it. For to drop his eyes would be utter discomfiture and rout. As Mrs. Kilgore alluded to his queer demeanor when

she told him the news, his face began to flush with the anticipation of the revelation that was coming at this most unfavorable moment, even while his eyes were locked with the already startled ones of Silas. As she went on, the flush covered the lower part of his face, and rose like a spring-tide up his cheeks, and lent a fierce, congested glare to his eyes. He felt how woeful and irretrievable a thing it would be for him just then to lose his countenance, and at the thought the flush burned deeper and merged higher. It overspread his high, bald, intellectual forehead, and incarnadined his scone up to the very top of it. At this moment it was that Mrs. Kilgore broke off her narrative with the exclamation, "Why, Joseph, what's the matter?"

At her words it seemed as if every drop of blood in his body poured into his face. He could endure it no longer. He rose abruptly, strode out of the parlor, and went to his room, although it was but eight o'clock, and he had no fire there. If he had staid another moment he must have brained Silas and his wife with the poker, such an ungovernable anger boiled up in him with the sense of his causeless, shameful discomfiture.

As Joseph left the parlor the eyes of Silas and his wife met each other, — his dull with bewilderment and terror at a spectral fear; hers keen with a definite suspicion. But even her loquacity was subdued by a real fright. She had nothing to say. Her sensation was like that of one who, hunting a hare, stumbles upon a wolf. She had been both offended and made curious by Joseph's demeanor that afternoon, but the horrid idea that within a moment had been suggested to both their minds had so little occurred to her as a serious possibility that she was even on the point of rallying Joseph on it before her husband. Some time after he had left the parlor Silas asked, with averted face:—

"What was it that he said when you told him the news?" and then she repeated his words.

And Joseph, sitting wild-eyed upon his bed in the darkness in the room above, red no longer, but pale as death, heard the murmur of the voices, and knew that she was telling him. No one of the household slept much that night, except Mrs. Kilgore. Whenever she awoke she heard her husband tossing restlessly, but she dared not ask him what was the matter. In vain did Silas rehearse to himself all through the night-hours how petty were the trifles in Joseph's demeanor which had disturbed him. They were of the sort

of trifles which create that species of certainty known as moral certainty,—the strongest of all in the mind it occupies, although so incapable of being communicated to others. It mattered little how much evidence there was, if it sufficed to lodge the faintest trace of suspicion in his mind. For, like some poisons, an atom of suspicion is as fatal as the largest quantity, Nay, perhaps, even more surely so, for against great suspicion the mind often takes arms and makes valiant head; but a little doubt, by its timid and hesitant demeanor, disarms opposition, and is readily entertained. And all that night, lying awake, and knowing that Silas was sleepless just the other side of the partition, and that the fungus of suspicion was moment by moment overgrowing his mind, he could hardly wait for morning, but would fain have rushed, even now in the darkness, to his bedside to cry: "I did not do it! Believe me, brother, I did not do it!"

In the morning, however, the sun shone brightly into his room, and last night's events and misunderstandings seemed like a bad dream. He went downstairs almost cheery. He did not find Silas, but Mrs. Kilgore was about. He was rather startled to observe the entire change in her demeanor. Yesterday she was constantly following him up with her sharp black eyes and brisk questions and exclamations, but now she seemed frightened, acted in a constrained manner, and avoided his eyes.

"Where is Silas?" he asked, as they sat down to table.

"He said that there was something he must see to at the shop before work began, so he had an early breakfast," replied Mrs. Kilgore, with her eyes on her plate.

Had she been looking up, she would have seen a piteous constriction in the muscles of Joseph's face. His heart was sick, and all his regained courage sank away. It was no bad dream. Silas was afraid to meet him. He left his meal untasted, and went to the office. A dozen acquaintances stopped him on his way down-street to ask about the murder; and all day long somebody was dropping in to pester him on the same subject. He told them with a dull, abstracted air all the fresh details he knew, but felt all the time as if he cheated each auditor of the vital part of the matter, in that he failed to shout after him:—

"Silas suspects me of it!"

Silas had, indeed, left the house early for the purpose of avoiding his brother. He was in a condition of mind and nerve in which he did not dare

to meet him. At tea the brothers met for the first time since the night previous. There was a constraint between them like that between strangers, but stronger and more chilling far than ever that is. There is no chill like that which comes between friends, and the nearer the friends the more deathly the cold. Silas made a little effort to speak of business-matters, but could not keep it up, and soon a silence settled over the party, only broken by the words of table-service. Mrs. Kilgore sat pale and frightened all through the meal without venturing a single phrase, and scarcely looking up from her plate.

The silence was of that kind which all felt to be more expressive than the loudest, most explicit language could be,—more merciless than any form of verbal accusation. Such silence is a terribly perfect medium, in which souls are compelled to touch each other, resent as they may the contact. Several times Joseph was on the point of rising and rushing from the table. How many more such meals could he stand or could they stand? All of them recognized that the situation had become perceptibly more serious and more pronounced on account of that silent tea-table.

There was in particular not the slightest allusion made by any one to the murder, which, seeing that it had happened but yesterday, and would naturally still have been an engrossing topic, was an omission so pointed as to be an open charge of guilt. There is such a thing as emphasizing a topic by suppressing it, as letters are sunk into stone. The omission impressed Silas as it did Joseph, but, regarding it from his point of view, it did not occur to him but that Joseph was the one solely responsible for it. He, Silas, had refrained from reference to it because his suspicions in regard to Joseph made the topic unendurable. But he could not imagine that Joseph could have had any other motive for his silence on the subject but a guilty conscience,—some secret knowledge of the crime. Thus regarded, it was a terrible confirmation. That a perception that he was suspected might cause an innocent man to act very much as if he were conscious of guilt did not occur to Silas, as, perhaps, it would have failed to occur to most persons in just his position.

After leaving the tea-table the brothers went together into the parlor, according to the family custom. They took their accustomed seats on opposite sides of the fireplace, but there was no conversation. A veil was between them. Both were thinking of the same thing,—thinking of it

intensely,—and each knew that the other was thinking of it, and yet neither for worlds could have commanded the courage to speak of it. The suspicion had grown definite in Silas's mind, and yet, whenever he brought himself to the point of putting it in words, it suddenly seemed impossible, cruel, and absurd. But if Silas found it impossible to speak, far more so it seemed to Joseph.

To charge another with suspecting us is half to confess ourselves worthy of suspicion. It is demoralizing,—it is to abandon the pride of conscious rectitude. To deny an accusation is to concede to it a possibility, a color of reason; and Joseph shrank with unutterable repugnance from that. He felt that he could be torn limb from limb sooner than betray by a word that he recognized the existence of suspicion so abominable. Besides, of what avail would be a denial without evidence to disprove a suspicion which had arisen without evidence? It was a thing too impalpable to contend with. As well fight a fog as seek to destroy by mere denial suspicion so vague, unsubstantial, and subtile, as that which enveloped him. Silas would, of course, eagerly accept his denial; he well knew how he would spring to his side, how warm and firm would be his hand-clasp, and how great, perhaps, his momentary relief. But he was, after all, but human, and no man can control his doubts. Silas would still be unable, when he thought the matter over, to help the feeling that there was, after all, something very strange about his conduct from first to last. It is the subtler nature of doubt to penetrate the heart more profoundly than confidence, and to underlie it. No generous St. George of faith can reach the nether den where it lurks. Or, rather, is it like the ineradicable witch-grass which, though it be hewed off at the surface, still lives at the root, and springs forth luxuriantly again at the first favoring season?

Moreover, Joseph hoped that some circumstance, the detection of the murderer, or a healthier moral tone, might dissipate the cloud of suspicion between them, and then it would be far better not to have spoken, for, once put in words, the hateful thing would ever remain a mutual memory, never again to be denied, and which might come up to their minds whenever they looked each other in the eye thereafter. And so the brothers sat opposite each other in silence, their faces growing grayer as the clock ticked.

"The weather is growing cooler again," said Joseph, at last, rising to go to his room.

It was at least two hours before his usual bedtime, but he could sit there no longer.

"Yes, I think we shall have a frost," replied Silas, and the brothers parted.

After Joseph had gone, Mrs. Kilgore came into the parlor and sat down with some sewing. She waited for her husband to speak and tell her if Joseph had said anything. But he sat there staring at the wall, and took no notice of her. Although she knew so well what had been preying upon his mind since last evening, yet he had not once referred to the matter, and she had not dared to do so. It was hard for a talkative little lady like her to understand this reticence about a matter so deeply felt. She could not comprehend that there may be griefs so ghastly that we dare not lift from them the veil of silence. She wanted to "talk it over" a little. She felt that would do Silas good, because she knew it would be a relief to her. Nor was she insensible to the gratification it would afford her vanity to discuss so serious a matter with her husband, whose general tone with her was one of jest and pleasantry, to the disparagement of her intellectual powers, as she thought. So, after glancing up several times timidly at Silas's still set profile, she said, in a weighty little voice:—

"Don't you think Joseph behaves very strangely about the murder?" Her words seemed to be several seconds in making an impression on Silas's mind, and then he slowly turned his face full upon her. It was a terrible look. The squared jaw, the drawn lips, the dull, distant stare, repulsed her as one might repulse a stranger intermeddling with a bitter private grief. Who was she, to come between him and his brother? He did not seem to think it worth while to say anything to explain so eloquent a glance, but immediately faced about again, as if dismissing the interruption from his mind. Mrs. Kilgore did not try to make any more conversation, but went to her bedroom and cried herself to sleep.

But Silas sat in his chair in the parlor, and took no note of the hours till the lamp spluttered and went out. All through the evening, in Joseph's room, which was directly above, he had heard him walking to and fro, to and fro, sitting down awhile, and then starting again; and if the pacing had not finally come to an end, Silas could not have gone to bed, for his heart went out to his brother wrestling there alone with his dreadful secret, and he could not rest till he thought that he, too, was at rest.

Indeed, for the very reason that Joseph was so dear to him, and he felt nothing could change that, he actually hesitated the less to admit these horrible suspicions. Love is impatient of uncertainty, and would rather presume the guilt of a friend from its longing to pour itself out in pity and tenderness, than restrain itself while judgment scrutinizes evidence and decides by a straw's weight.

A practical reflection, moreover, had occurred to Silas.

If Joseph had really—he did not dare to say to himself what—then it was of the utmost importance that they should quickly understand each other, so as to take steps to place him in safety. His desire to share Joseph's horrible secret was like the feeling with which one would fain uncover a friend's loathsome disease in order to help him. Before he went to sleep that night he resolved, therefore, that he would win his confidence by letting him see in every possible way, short of actual words, that he suspected the true state of things, and that Joseph might still confide in him as a faithful brother who would stand by him in the worst emergency.

On first meeting him the following morning he began to carry out this project so worthy of fraternal devotion. He sought occasion to shake hands with Joseph, and gave a meaning pressure to his clasp. At breakfast he was the only one who talked, and endeavored by his manner to let Joseph understand that he perfectly comprehended the situation, and was talking to cover his embarrassment and prevent Mrs. Kilgore from suspecting anything. Several times also he managed to catch his brother's eye, and give him a glance implying sympathy and mutual understanding. This demeanor added the last touch to Joseph's exasperation.

Evading Silas's evident intention of walking down-street, he got away alone, and took both dinner and tea at a restaurant, to put off meeting his brother and sister-in-law as long as possible. He lingered long over his tea in the darkest, loneliest corner of the eating-house, for the prospect, no longer to be avoided, of returning home to confront his sister-in-law's frightened face and Silas's pathetic glances appeared intolerable. Wild ideas of flying from the city and returning never, or not until the truth about the murder had come to light, occurred to him. He even began to arrange what sort of a letter he should write to Silas. But men of forty, especially of Joseph's temperament, who have moved in the same business and domestic ruts all their lives, do not readily make up their minds to bold steps of this

sort. To endure suffering or inconvenience is more natural than to change their settled habits. So it all ended in his going home at about eight o'clock, and being greatly relieved to find some callers there.

All three of this strangely stricken family, indeed, shared that feeling. It was such a rest from the nervous strain whenever either or both were left alone with Joseph! The earnestness with which Mrs. Kilgore pressed her guests to stay a little longer was so unusual and apparently uncalled for that I fancy Mr. and Mrs. Smith had a vague suspicion that they were being made game of. But they would have been disabused of that impression could they have appreciated the sinking of heart with which their hosts heard the frontdoor close, and realized that they were again left to themselves. Only one thing had occurred to mar the relief which the call had afforded. The topic of the murder had been exhausted before Joseph entered, but, just as she was leaving, Mrs. Smith made a return to it, saying:—

"Mrs. Kilgore, I was telling my husband I should think you must be scared to be in the house, for fear the murderer might still be hanging around."

Mrs. Kilgore shuddered, and cast an instantaneous, wholly involuntary glance at Joseph. Her husband intercepted it, and, catching his eye, she saw an expression in it as if he could strangle her for what was really only the fault of her nerves. She stammered something, and the bustle of the retiring guests covered her confusion well enough.

Unfortunately, Joseph, too, had caught that sudden, terrified glance of his sister-in-law's at him, and it affected him more than anything that had occurred in either of the two days since the murder. As the guests took their leave, his head dropped on his breast, and his arms fell by the sides of his chair. Mr. Kilgore wanted to send his wife from the room, but his voice stuck in his throat, his tongue refused to move. They waited a moment, and then Joseph said:—

"Send for the police! For God's sake, take me out of this! I can't stand it any longer!"

It was not yet nine o'clock, and a boy came by in the street crying:—

"Extra! The Kilgore barn murderer captured! Full confession!"

Although the words were perfectly audible through the lowered windows to all in the room, Mrs. Kilgore was the only one who took any mental cognizance of them. Nor did either of the men, who sat there like stones, take note of her as she left the room. A minute later they heard her scream, and she ran back with the open paper in her hands.

"He did not do it! He is crazy! They have found the murderer!"

Silas fixed an incredulous, questioning stare upon his wife, and then turned quickly toward his brother. As for Joseph, at first and for several moments, he gave no sign that he had heard at all. Then he slowly raised his eyes to his brother's face with a deliberate, cruel gaze of contemptuous sarcasm and cold aversion. The first effect of this great relief was to flood his mind with bitter wrath at those who had done him the great wrong from which, no thanks to them, he had been rescued.

Mrs. Kilgore hastily read aloud, in a breathless voice, the newspaper account. It seemed that two tramps had taken refuge in the barn from the storm that had raged the night of the murder, and getting into some quarrel before morning, one had stabbed the other and fled, only to be captured two days later and confess everything. When Mrs. Kilgore ceased reading, Joseph said:—

"It must be a great disappointment for you that they are not going to hang me for it. I sincerely condole with you."

Mrs. Kilgore cried, "Oh, don't!" and Silas made a gesture of deprecation, but both felt that Joseph had a right to revile them as he chose, and they had no right to complain. But he, even while he could not deny himself the gratification of a little cruel reproach, knew that they were not to be blamed, that they had been as much the victims of a fatality as himself, and that this was one of those peculiarly exasperating wrongs which do not leave the sufferer even the satisfaction of being angry. Soon he got up and walked across the room, stretched himself, drew his hand over his forehead, and said:—

"I feel as if I had just been dug up after being buried alive."

At this sign of returning equanimity, Silas took courage and ventured to say:—

"I know we 've been a pair of crazy fools, Joe, but you 're a little to blame. What's made you act so queerly? You won't deny that you have acted

so?"

Joseph smiled,—one does n't appreciate the pure luxury of a smile until he has been deprived of it for a while,—lit a cigar, sat down with his legs over the arm of his arm-chair,—he had not indulged in an unconstrained posture for two days,—and told his side of the story. He explained how, thanks to that tale he was reading, and the ghastly reverie it suggested, his nerves were all on edge when Mrs. Kilgore burst in with a piece of news whose extraordinary coincidence with his train of thought had momentarily thrown him off his balance; and he tried to make them see that, after that first scene, all the rest was a logical sequence.

Mrs. Kilgore, by virtue of her finer feminine nervous organization, understood him so readily that he saw he had made a mistake in not unbosoming himself to her at first. But Silas evidently did not so easily take his idea.

"But why did n't you just tell us that you had n't done it, and end the misunderstanding at one blow?" he asked.

"Why, don't you see," replied Joseph, "that to deny a thing before you are distinctly suspected of it is to suggest suspicion; while to deny it afterward, unless you have proof to offer, is useless?"

"What should we have come to but for the capture of the real murderer?" cried Mrs. Kilgore, with a shudder. cried Mrs. Kilgore, with a shudder.

*** END OF THE PROJECT GUTENBERG EBOOK TWO DAYS'
SOLITARY IMPRISONMENT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.